

26STCP00072 26STCP00072

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-25

Source URL: https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=SS%20%2C26%2C06%2F25%2F2026

Source SHA-256: d5f8bb78d5a4c32ad85d47982c7580a7d0cf46d49b5eb1e944500d89e19374e4

Case Number: 26STCP00072 Hearing Date: June 25, 2026 Dept: 26

TENTATIVE RULING:

Petitioner Ricberay, Inc.'s Motion for an Award of Attorney's Fees and Costs is granted. Petitioner is awarded attorney's fees of \$10,420.00 and costs of \$492.03.

Analysis:

On January 6, 2026, Petitioner Ricberay, Inc. ("Petitioner") filed the instant Petition for Permanent Injunctive Relief Pursuant to Civil Code section 798.88 against Respondents Martin Apolinar and Angels Rivas ("Respondents"). Petitioner personally served Respondents with the Petition and Notice of Hearing on Petition. (Proof of Personal Service, filed 01/20/26, ¶¶2-3.) Respondents filed no response to the Petition, and following the hearing on January 21, 2026, the Court granted the injunction in Petitioner's favor. (Minute Order, 01/21/26; Order Granting Petition, 01/21/26.) Petitioner served Respondents with notice of the ruling on January 28, 2026. (Notice of Ruling, filed 01/28/26, p. 7.)

Petitioner filed a Memorandum of Costs on March 6, 2026 and the instant Motion for Attorney's Fees and Costs on March 23, 2026. Respondents filed an opposition to the instant Motion on June 22, 2026.

Discussion

Timing of Motion for Attorney's Fees and Memorandum of Costs

A motion for attorney's fees must be filed and served within the time for filing a notice of appeal under Cal. Rules of Court Rule 8.822. (Cal. Rules of Court Rule 3.1702(a).) Cal. Rules of Court Rule 8.822 states that an appeal must be filed within the earlier of either (1) 30 days after service of the notice of entry of the judgment; or (2) 90 days after entry of the judgment. (Cal. Rules of Court 8.822(1).) The order granting the Petition was entered on January 21, 2026 and served on Respondent a week later. Although the document served on January 28, 2026 was not called "Notice of Entry of Judgment," it operated as the judgment in this action. The instant Motion was timely filed less than 90 days later.

A memorandum of costs must be filed 180 days after entry of judgment, or within 15 days after the date of service of the notice of entry of judgment. (Cal. Rules of Court, rule 3.1700(a)(1).) The Memorandum of Costs was timely filed six weeks after the January 21, 2026 entry of judgment.

Entitlement to Attorney's Fees and Costs

Petitioner moves for an award of attorney's fees in the amount of \$10,420.00 and \$492.03 in costs pursuant to Civil Code sections 798.85 and 1717, subdivisions (a) and (b). A prevailing party is entitled to recover costs, including attorney fees, on a petition to enjoin violations of mobile home park rules. (Civ. Code, § 798.85.) Civil Code section 1717 provides that attorney fees and costs shall be awarded to the prevailing party in an action on a contract, where the contract specifically provides for attorney fees and costs. (Civ. Code, § 1717, subd. (a).) Petitioner is both the prevailing party on the instant Petition and is entitled to attorney fees and costs under the parties' lease agreement. (Motion, Beam Decl., Exh. 1 at ¶26.) Therefore, Petitioner is entitled to an award of attorney fees and costs.

Reasonable Attorney's Fees and Costs

Petitioner's counsel billed its work between \$325.00 and \$375.00 per hour, and the paralegal's time at \$140.00 per hour. (Id. at ¶¶7-8 and Exh. 2.) Given the legal professionals working on this action have decades of experience, the Court finds these billing rates to be reasonable. (Ibid.) Petitioner also attaches its complete billing records, demonstrating that the attorneys spent 21.7 hours, and the paralegal spent ten hours, on this case. (Ibid.) The time was spent issuing two Seven-Day Notices to Respondents, preparing and filing the Petition, communicating with witnesses, preparing and filing the declarations in support of the Petition, attending the hearing and obtaining the issuance of the Injunction Order, and preparing the instant Motion. (Id. at ¶5 and Exh. B.)

Respondents oppose the fees sought as unsupported by contemporaneous billing records, disproportionate to the simplicity of an unopposed Petition, and involving duplicative and overcharged work. (Opp., pp. 1-3.) The opposition, however, cites no part of the evidence submitted with the Motion to demonstrate any of these points. The opposition incorrectly contends that the Motion does not include contemporaneous billing records, despite the invoices being attached at Exhibit B to the declaration of Attorney Beam. Respondents also do not provide any examples of the purported duplicative work performed by Petitioner's counsel, or what administrative work was billed at an unreasonable rate. (Ibid.) Accordingly, the Court finds that the attorney's fees sought are reasonable in light of the rate charged and the work performed in this action.

Petitioner seeks costs of \$492.03 as set forth in its Memorandum of Costs filed on March 6, 2026. Respondents filed no motion to tax or strike costs by the 15-day deadline, nor does their opposition discuss the particular costs sought. (See Cal. Rules of Court, rule 3.1700(b)(1).)

Finally, to the extent Respondents ask the Court to take their financial and personal circumstances into account to reduce the award of fees and costs, they cite no legal authority for the Court's ability to do so. (Opp., p. 4.)

Conclusion

Petitioner Ricberay, Inc.'s Motion for an Award of Attorney's Fees and Costs is granted. Petitioner is awarded attorney's fees of \$10,420.00 and costs of \$492.03.

Moving party to give notice.